TEMPLATE
DUE DILIGENCE REQUEST LIST

1. Company		Available	Not applicable	Not available	Notes
1.1.	Deed of incorporation, articles of association in force and any amendment to the articles of association	☐	☐	☐	
1.2.	An organisation chart of the group structure, including a list of participating interests, subsidiaries, group companies, branches and other Company interests in other enterprises	☐	☐	☐	
1.3.	Shareholders' register (fully updated) and all agreements and deeds involving the transfer, purchase, redemption, issue (split), and conversion of shares, legal separation and/or merger	☐	☐	☐	
1.4.	Agreements and notarial deeds whereby rights of pledge or usufruct were created on shares in the capital of the Company or any Subsidiary	☐	☐	☐	
1.5.	A list of all current members of the Board of Directors (including additional positions filled by board members), proxyholders and officers of the Company	☐	☐	☐	
1.6.	Minutes of all meetings of the Board of Directors and general meeting of shareholders (or holders of a particular class of shares), including copies of all written resolutions or other consents if any.	☐	☐	☐	
1.7.	Extract from the Trade Register of the Chamber of Commerce	☐	☐	☐	
1.8.	Shareholders' agreements, voting agreements and/or other strategic alliance agreements, including joint venture, partnership etc.	☐	☐	☐	
1.9.	Trust conditions and articles of association of the trust				
1.10.	Options to shares, including employee options, equity incentive plans, warrants and profit shares (if any)	☐	☐	☐	
1.11.	Depositary receipts for shares (if any)	☐	☐	☐	
1.12.	A list with a description of any other rights granted in respect of the shares in the Company, in respect of the profit of the Company or related to the profit of the Company	☐	☐	☐	

1.13.	Any existing or past related party transactions between the Company on the one hand and its managing directors, employees and/or shareholders, affiliates – in the broadest sense of the word – or persons otherwise affiliated with the Company on the other hand	☐	☐	☐	
1.14.	List of all jurisdictions in which any Company is qualified to do business and/or is doing business.	☐	☐	☐	
2. Financing and security		**Available**	**Not applicable**	**Not available**	**Notes**
2.1.	Lists of banks or other lenders with which the Company has a financial relationship (briefly describe the nature of relationship, lines of credit etc.)	☐	☐	☐	
2.2.	Security documents whereby security rights were created by or relating to the Company and the subsidiaries, including pledges of bank accounts, movable assets, trade receivables, intercompany receivables, debentures, intellectual property etc.	☐	☐	☐	
2.3.	Copies of all audited and unaudited annual accounts of the Company for the past three years, including financial statements. Copies of all annual reports and auditor's reports	☐	☐	☐	
2.4.	Subsidies and investment grants requested and awarded, as well as the applicable rules and regulations	☐	☐	☐	
2.5.	All tax returns filed for the past three years	☐	☐	☐	
3. Employees					
3.1.	Employment contracts, agreements with consultants, freelancers or independent contractors and commission arrangements, including offer letters	☐	☐	☐	
3.2.	List of all current employees including: name, title, nature of employment agreement (definite or indefinite definite period of time), date of birth, in-position date, total of FTE working hours per week, net base salary, bonus or profit sharing entitlement, participation to a (individual or collective) (pre) pension scheme, entitlement to a share or option plan and whether the contract contains a competition clause, confidentiality clause, a clause involving intellectual property or a penalty clause	☐	☐	☐	

3.3.	Information on absenteeism due to illness, employees on sick leave for a period of over 3 months and absenteeism schemes	☐	☐	☐	
3.4.	Report on specific terms, benefits, and policies regarding overtime, bonus plans, vacation, loan, traveling expenses, , employment conditions in kind (for example housing or mobile telephone), company car and severance pay, along with copies of employee handbooks, any applicable CLA's (collective labor agreements), personnel policy guides, retirement benefit plans and pension regulations	☐	☐	☐	
4.	**Intellectual Property and Information Technology**				
4.1.	List of copyrights and databases held by the Company, their nature (brief description), origin and owners	☐	☐	☐	
4.2.	List of registration or evidence of registration of all the Company's registered trademarks (names and logos), patents and models	☐	☐	☐	
4.3.	List of the trade names in use by the Company and the owners of the trade names	☐	☐	☐	
4.4.	List of all trademarks, patents and models in use by the Company which have not been registered and reason why they have not been registered	☐	☐	☐	
4.5.	List of all domain names registered to the Company	☐	☐	☐	
4.6.	List of the Company's exclusive rights to know-how and know-how protection (e.g. confidentiality clauses)	☐	☐	☐	
4.7.	Agreements involving the Company's use of intellectual property rights (copyrights, databases, trademarks, patents, models, trade names, domain names and other intellectual property rights) and/or third-party know-how and/or third-party use of intellectual property rights and/or Company know-how (e.g. licence agreements and transfer deeds)	☐	☐	☐	
4.8.	Proprietary information and inventions agreements with employees and consultants of the Company.	☐	☐	☐	
4.9.	License and technology transfer agreements and other agreements of the Company regarding technology with founders, corporate partners or other parties.	☐	☐	☐	
4.10.	License, joint development, royalty or collaboration agreements of the Company.	☐	☐	☐	

4.11.	Description of IT environment (including list of respective suppliers)	☐	☐	☐	
4.12.	Agreements relating to the purchase and lease of hardware IT services, e.g. consulting services, implementation, management and maintenance of software/hardware	☐	☐	☐	
4.13.	Agreements relating to the purchase/licensing of standard/tailor-made software	☐	☐	☐	
4.14.	Sourcing agreements in respect to IT environment, e.g. insourcing, outsourcing, co-sourcing, facility management, ASP, SaaS, cloud computing, hosting, housing	☐	☐	☐	
4.15.	Agreements relating to technology escrow of (parts of) own IT environment (e.g. software source code escrow)	☐	☐	☐	
4.16.	Website development contracts, hosting and/or maintenance contracts involving the Company website(s), Website terms of use and website disclaimers	☐	☐	☐	
4.17.	Agreements involving compliance with statutory privacy provisions (e.g. data processing agreements, data transfer agreements) and documents evidencing compliance with statutory privacy provisions, privacy statements or policies and any other privacy related documents (e.g. cookies policy, email/internet policies, security policies)	☐	☐	☐	
5. Contracts and Agreements					
5.1.	Copies of: – contracts with distributors and/or suppliers – contracts with customers – research and development agreements – insurance policies – lease agreements – any other material contracts concluded by the company	☐	☐	☐	
5.2.	Agreements (potentially) subject to amendment or termination as soon as the Company changes its control structure (change-of-control provisions)	☐	☐	☐	

5.3.	Notices, consents, information requests, permits, licenses, approvals and certificates of authority from national, state and/or local authorities held or required to be held by the Company.	☐	☐	☐	
5.4.	A list of outstanding offers to/by the Company	☐	☐	☐	
6. Litigation					
6.1.	Documentation relating to previous, pending or threatened litigation, assessments, IP/IT infringements or other claims against or involving the Company or any of its directors, officers, employees of affiliates, including judgements, arbitration awards, court orders, decisions - all in the broadest sense of the word.	☐	☐	☐	
6.2.	Pending or imminent government reviews and/or reviews conducted by EU bodies, EU judicial authorities or any national or international umbrella organisation	☐	☐	☐	
7. Miscellaneous					
7.1.	Any other documents or information which, in your judgement, are significant to the business of the Company or which should be considered and reviewed regarding the business and financial condition of the Company	☐	☐	☐	

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